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Case Name: *Creditors Adjustment Bureau, Inc. v. Luis Castaneda, et al.*

Case No.: 25CV475688

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") moves under Code of Civil Procedure Section 438(c) for Judgment on the pleadings on the grounds that the Complaint states facts sufficient to constitute a cause of action against Defendant Luis Castaenda ("Defendant"),[1] and Defendant's answer does not state facts sufficient to constitute a defense to the Complaint. Notice of Motion (the "Motion") at 1:21-2:2 (filed: February 13, 2026).

The Motion came on for hearing on August 7, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On September 19, 2025, Plaintiff filed a Complaint with a First Cause of Action for Breach of Contract (among other causes of action) against Defendant for damages: (1) in the amount of $15,707.23 together with interest thereon at the rate of ten percent (10%) per annum from May 17, 2025, *plus* (2) treble damages under Insurance Code § 11760.1(a), *plus* costs for this suit. Complaint at ¶¶ 1-18 & Prayer for Relief as to the First Cause of Action at ¶¶ 1-3 (filed Sept. 19, 2025). Having reviewed the Complaint, the Court finds that it *does* state facts sufficient to constitute a cause of action for breach of contract by Plaintiff against Defendant including the damages sought.

Defendant filed an Answer on January 20, 2026, which does not deny any allegation or claim in the Complaint. Answer (filed Jan. 20, 2026). Indeed, in the Answer "Defendant admits *all allegations* of the Complaint" and "acknowledges the debt owed in the amount of $15,707.23." Answer at ¶ 3(b) (emphasis added). Having reviewed the Answer, the Court finds that it *does not* state facts sufficient to constitute any defense to the Complaint.

Code of Civil Procedure Section 438(a) authorizes a Plaintiff to bring this Motion for Judgment on the Pleadings where, as here, "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." C.C.P. § 438(a).

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[1] More specifically, as named in the Complaint, Defendant is Luis Castaneda aka Luis A. Castaneda aka Luis Alejandro Castaneda-Rios aka Luis Alejandro Rios aka Luis A. Castaneda Rios dba Castaneda Construction. (Complaint filed Sept. 19, 2025).

Here, as the Court has found that (1) the Complaint states facts sufficient to constitute a cause of action for breach of contract against Defendant for damages in the amount of $15,707.23 plus interest, plus treble damages in the amount of $47,121.69,[2] plus costs of suit, and (2) Defendant's Answer does *not* state facts sufficient to constitute any defense to the Complaint, Plaintiff's Motion under Section 438(a) is **GRANTED** in all respects.

Moreover, as the Court reads Defendant's Answer to admit that he admits all allegations in the Complaint including that Defendant owes the debt claimed by the Complaint, there is no reasonable possibility that this defective pleading (that fails to state facts sufficient to constitute any defense) could be cured by amendment. Accordingly, the Motion is **GRANTED WITHOUT LEAVE TO AMEND.**

Defendant does not argue otherwise. Indeed, Defendant has not opposed the Motion at all, which the Court views as Defendant conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).

Given this Order Granting Plaintiff's Motion without leave to amend, Plaintiff is entitled to Judgment now in the amount of damages sought in the Complaint of $15,707.23, *plus* interest on the principal debt to the date of this hearing in the amount of $1,923.60 as sought in the Complaint,[3] *plus* treble damages in the amount of $47,121.69 under Insurance Code § 11760.1(a) as sought in the Complaint,[4] plus costs incurred for bringing this Motion in the amount of $782.02.[5] So the total amount that Plaintiff is entitled to now is $65,534.54.[6]

Accordingly, Judgment is entered now in favor of Plaintiff and against Defendant for the total amount of $65,534.54.

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[2] $15,707.23 x 3= $47,121.69
[3] *See* Declaration of attorney Kenneth J. Freed in Support of Motion ("Freed Decl.") at ¶ 4 ("The interest on the principal debt is at a rate of 10%. The total interest accumulated as to the date of hearing will be $1,923.60).
[4] For clarity of the record, the amount of treble damages of $47,121.69 is based on the principal balance of $15,707.23, i.e., 3 times $15,707.23 = $47,121.69. Pl. Memo. of Points & Authorities at 4:9-10.
[5] Freed Decl. at ¶ 5 ("As of this filing, costs for this suit has accumulated to $782.02).
[6] $65,534.54 = $15,707.23 (damages) + $47,121.69 (treble damages) + $1,923.60 (interest) + 782.02 (costs).

Conclusion and Order

For the reasons set forth above, Plaintiff's Motion for Judgment on the pleadings in the total amount of $65,534.54. in favor of Plaintiff Creditors Adjustment Bureau, Inc. and against Defendant Luis Castaenda is **GRANTED WITHOUT LEAVE TO AMEND.**

SO ORDERED.

Date: August 7, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Judgment

Plaintiff's Motion for Judgment on the Pleadings in favor of Plaintiff Creditors Adjustment Bureau, Inc. and against Defendant Luis Castaenda came regularly for a hearing by the Court on August 7, 2026, on notice duly given. After reviewing all the papers and giving counsel for all parties the opportunity to be heard, the Court **GRANTS THE MOTION WITHOUT LEAVE TO AMEND.**

ACCORDINGLY, IT IS SO ORDERED, ADJUDGED, AND DECREED THAT:

Plaintiff Creditors Adjustment Bureau, Inc. have and recover now from Defendant Luis Castaenda a **Total Judgment in the amount of $65,534.54,** which equals damages of $15,707.23 plus treble damages of $47,121.69 plus interest of $1,923.60 plus costs of $782.02.

Date: August 7, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 3

Case Name: *Lee Drone v. Peter D. Bear, et al.*

Case No.: 25CV480264

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Specially-Appearing Defendant Dane County Title Company, LLC ("Dane County Title" or "Defendant") moves under Code of Civil Procedure Section 418.10(a)(1) to Quash Service of Summons on the grounds that the Court lacks jurisdiction over Dane County Title, a Wisconsin company. Notice of Motion (the "Motion") at 1:23-66 (filed: January 20, 2026). In the alternative, Dane County Title moves under Code of Civil Procedure Section 418.10(a)(2) to dismiss this matter on the grounds that Santa Clara County is an inconvenient forum. *Id.* at 26-27.

The Motion came on for hearing on August 7, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the Complaint, on November 1, 2021, Plaintiff and Ian Goodman , as co-owners, purchased the real property located at 1430 Ellen Avenue, Madison, Wisconsin ("Wisconsin Property"). Dane County Title Company acted as the settlement agent for the transaction (Complaint ¶¶ 1, 2)

Some dispute arose between Plaintiff and Ian Goodman. As a result, Ian Goodman, through his attorney Peter Bear, sent various email communications to Plaintiff regarding their co-ownership agreement, offer to purchase Plaintiff's share, Goodman's petition for harassment injunction, and service of the restraining order. Peter Bear and Plaintiff exchanged email communications pertaining to the legal proceedings in Wisconsin, discovery, settlement terms and proposals. Some of the email communications contained production of Plaintiff's loan application without redacting Plaintiff's private information, and Goodman's petition, which contained false statements. (Complaint ¶¶ 2-10, 26-107)

As a result of Defendants' wrongful acts and communications, Plaintiff was unlawfully excluded from use and disposition of the Wisconsin Property; has incurred litigation costs, travel costs, loss of work time; has suffered reputational harm and emotional distress. (Complaint ¶¶ 197-198)

Plaintiff initiated this action on November 21, 2025, alleging 84 causes of action: